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Sanctions for GDPR Violations

The National Authority for the Supervision of Personal Data Processing has completed two investigations into two operators and found violations of the provisions of Article 32 paragraph (1) letter b) and Article 32 paragraphs (2) and (4) of Regulation (EU) 2016/679.

The investigations were initiated following the operators' notification of a personal data security breach, in accordance with Article 33 of Regulation (EU) 2016/679.

Thus:

1. The operator CENTRUL MEDICAL UNIREA SRL was sanctioned with a fine of 24,856 lei (equivalent to 5,000 EURO).

The data security breach occurred as a result of the unauthorized disclosure of personal data on the internet.

During the investigation, it was found that personal data (such as: name and surname, personal identification number, date of birth; age, gender, work or personal phone number, work or personal email address, information regarding the correspondence address, profession, position, attendance records, targets, and bonuses) of a significant number of data subjects (patients and employees) were unauthorizedly disclosed.

As a result, the investigation concluded that the operator had not implemented appropriate technical and organizational measures to ensure a level of confidentiality and security commensurate with the risk of processing and had not taken sufficient measures to ensure that any natural person acting under the authority of the operator and having access to personal data processes it only at their request.

Furthermore, based on Article 58 paragraph (2) letter d) of Regulation (EU) 2016/679, a corrective measure was ordered for the operator Centrul Medical Unirea SRL to review and update the technical and organizational measures implemented following the assessment regarding the risk to the rights and freedoms of individuals, including regarding the implementation of a process for the periodic testing, evaluation, and assessment of the effectiveness of the technical and organizational measures to guarantee the security of the processing carried out.

2. The operator Genpact România SRL was sanctioned with a fine of 14,913.6 lei (equivalent to 3,000 EURO).

The data security breach occurred as a result of sending a file containing data related to personnel recruitment to an unauthorized email address of an employee.

During the investigation, it was found that no measures were taken to ensure that any natural person acting under the authority of the operator and having access to personal data processes it only at their request. It was also found that the operator had not implemented appropriate technical and organizational measures to ensure a level of security commensurate with the risk of processing, including the ability to ensure the confidentiality, integrity, availability, and resilience of processing systems and services.

As such, this breach led to unauthorized access and unauthorized disclosure of personal data (such as: name and surname, phone number, email address) of certain data subjects.

Additionally, based on Article 58 paragraph (2) letter d) of Regulation (EU) 2016/679, a corrective measure was ordered for the operator Genpact România SRL to review and update the technical and organizational measures implemented, including the working procedures related to the protection of personal data, the implementation and transmission to responsible persons of instructions regarding the prohibition of the use of employees' personal equipment in various unauthorized activities of the company, and measures regarding the training of individuals acting under its authority concerning their obligations under the provisions of Regulation (EU) 2016/679, including regarding the risks and consequences involved in the disclosure of personal data.

Legal and Communication Department

A.N.S.P.D.C.P